

		the request is GRANTED as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Ev. Code §452(d) [court records]; <i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) Defendant has not shown judicial notice of the transcript (Ex. 2) is proper. Defendant's request for judicial notice as to Exhibit 2 is thus DENIED. <u>Plaintiffs' Request for Judicial Notice:</u> To the extent Plaintiffs seek judicial notice of court pleadings, filings, and orders, the request for judicial notice is GRANTED as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Ev. Code §452(d) [court records]; <i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) Plaintiffs' request for judicial notice is DENIED to the extent it seeks judicial notice of declarations and evidentiary materials, including the private investigator report, as Plaintiffs have not shown such materials are proper subjects of judicial notice. <u>Evidentiary Objections:</u> Defendant's Objection No. 1 is SUSTAINED. Defendant's Objection Nos. 2-3 are OVERRULED. Defendant's Objection Nos. 4-20 are SUSTAINED as to lack of authentication. <u>Request to Strike, Seal, or Redact (ROA 37):</u> Given the court's ruling to sustain Defendant's objections to Plaintiffs' exhibits, it does not appear to the court that a separate order striking the materials as requested is necessary. To the extent Defendant seeks an order sealing the materials under California Rules of Court, rules 2.550 and 2.551, the request is not properly supported as no declaration was submitted with the request. (See CRC rule 2.551(b)(1) [motion to seal must be accompanied by a declaration containing facts sufficient to justify the sealing].) The request to seal or redact is DENIED without prejudice. Counsel for Defendant shall give notice.
5	Cali Dumpling Management, LLC v. Star Leaf Oto, et. al	The application by plaintiff Cali Dumpling Management, LLC for a right to attach order against defendant Star Leaf Oto, LLC is DENIED, without prejudice. There is no proof of service in the Court's file showing that either the complaint or the application have been served on Star Leaf Oto, LLC. (Code of Civil Procedure §482.070; Cal. Rules of Court, rule 3.1300(c) - proof of service must be filed at least five court days prior to the hearing.) Plaintiff shall give notice.
6	Jahangiri v. Vahidramezani	Cont. to 8/31.
7	Hallett v. Waterfront Resort	Before the Court at present is the "Motion For Order Requiring Vexatious Litigant And Pro-Per Plaintiff Darrell Hallett To Furnish Security Pursuant To CCP §391.3," filed on 12/23/25 by defendants

Properties, LP et al	Waterfront Resort Properties LP, De Anza Corporation, Newport Dunes Resort and Marina Partnership, Dunes Resort LP, Dunes Resort LLC, Terra Vista Management Inc. and Phillip Ravenna ("Defendants"). The Motion is DENIED. As a preliminary matter, there are numerous defects in the papers presented by Plaintiff Darrell Hallett ("Plaintiff") in opposition to the motion. Plaintiff's original opposition papers were untimely. Plaintiff then attempted to submit a number of even more untimely amendments and supplements, including an additional set of "supplemental exhibits" filed on 5/28/26. The Court will exercise its discretion to consider the slightly tardy submissions presented by Plaintiff on 4/8/26, but will not consider Plaintiff's additional submissions presented thereafter. Plaintiff's Opposition brief also grossly exceeded permissible page limits, in violation of C.R.C. 3.1113(d), and lacks the required tables of contents and authorities, in violation of C.R.C 3.1113(f). The Court will therefore consider only the initial 15 pages of argument presented in ROA 303. Plaintiff is reminded that future compliance with all filing deadlines, page limits, and all other filing requirements is expected, and that future violations may result in a refusal to consider such improper submissions. However, the Motion fails on the merits here. Defendants seek an order, under C.C.P. § 391.1, requiring Plaintiff to furnish security. Defendants must thus show that Plaintiff, who has already been deemed a vexatious litigant, has no "reasonable probability" of prevailing in this action. The court may weigh the evidence presented on the motion. (<i>Moran v. Murtaugh Miller Meyer & Nelson, LLP</i> (2007) 40 Cal.4th 780, 782.) But Defendants bear the burden of proving that Plaintiff has no reasonable likelihood of prevailing on <u>any</u> of the causes of action that he has presented here. (<i>Golin v. Allenby</i> (2010) 190 Cal.App.4th 616, 641.) Defendants have failed to meet that burden here. Plaintiff's Third Cause of Action asserts a claim for violation of Civil Code §1671. Plaintiff asserts therein that Defendants charged him \$5,325 for a total of 71 daily late fees, in violation of Civil Code §1671. (Complaint, ¶¶ 79 – 110, 202-203.) Plaintiff also asserts that Defendants "cancelled" his future reservations due to nonpayment, and offered to refund \$1,052.78 in late fees only if he agree to certain conditions. (Complaint ¶¶ 175-179.) Defendants have failed to fully address those assertions, arguing instead that they offered to refund "the only late fees actually and inadvertently collected from him in the amount of \$302.87." (ROA 141, p. 11; Ravenna Decl., ¶¶ 8-10.) But Defendants have failed to provide any evidence to show what late fees were assessed when, which were actually paid, and how they calculated the refund. Nor have they presented authority to establish that merely refunding the collected portion of an allegedly unlawful fee would suffice to avoid any liability under §1671, and for any related claim based thereon. Plaintiff's Opposition asserts, without offering any actual testimony or other evidence to support the claim, that he actually paid \$600 in late fees. But even without any admissible evidence from Plaintiff to
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		refute Defendants' claims as to the amount collected, Defendants have failed to meet their burden for the Third Cause of Action. The Motion therefore is DENIED. Counsel for Defendants to give notice of this ruling.
8	Hashimi v. American Honda Motor Co., Inc.	O/C
9	Vo v. Strawberry Pond Healthcare, LLC	The unopposed Petition of Kristie Vo to Maintain Elder Abuse/Neglect Action in the Name of Hang Vo, Deceased is GRANTED. Ms. Vo has submitted a declaration which satisfies the requirements of Code of Civil Procedure section 377.32. (<i>See generally</i> Declaration of Kristie Vo attached as Exhibit A to motion.) The motion is thus GRANTED. (Wel. & Inst. Code, § 15657.3(d).) Counsel for Ms. Vo is to submit a proposed order and is to give notice of this ruling.
10	Rancho Domingo Townhomes Community Assn. v. Azardmard	O/C
11	Creditors Adjustment Bureau, Inc. v. Matsunaga Enterprise, Inc.	O/C
12	Smith v. Kia America, Inc.	A) Demurrer Defendant Kia America, Inc.'s ("Defendant") Demurrer to plaintiff Wayne D. Smith's ("Plaintiff") First Amended Complaint ("FAC") is OVERRULED. Defendant demurs to the fifth cause of action ("COA") for Fraudulent Inducement – Concealment based upon lack of sufficient facts (Civ. Proc. Code § 430.10(e)), uncertainty (Civ. Proc. Code § 430.10(f), and the Economic Loss Rule ("ELR"). Sufficiency of Facts and Uncertainty "California case law similarly has viewed fraud by concealment on equal footing with fraud by affirmative misrepresentation. " 'Where failure to disclose a material fact is calculated to induce a false belief, the distinction between concealment and affirmative misrepresentation is tenuous. Both are fraudulent.' " [Citations.] "[I]ntentional concealment of a material fact is an alternative form of fraud and deceit equivalent to direct affirmative misrepresentation." " " (<i>Rattagan, supra</i>, 17 Cal. 5th at 39–40.)